

# TRANSPORTATION SERVICES AGREEMENT — NOVA TRANSPORTES

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## 1. Parties and purpose

This controlled synthetic agreement defines transportation-service obligations between the enterprise and Nova Transportes. It is designed to represent a carrier-specific commercial source for enterprise knowledge retrieval and comparison.

## 2. Service scope

Regional and national road transportation with emphasis on scheduled and standard services for distribution-center replenishment.

## 3. Service-level obligations

The carrier must perform the contracted services according to the applicable service category, route commitments, approved operating instructions, and the active Transportation Policy. Contract-specific obligations apply where they are stricter than general operating requirements.

## 4. Performance measurement

Performance is reviewed using the enterprise Logistics KPI Dictionary and carrier-governance process. OTIF, on-time delivery, damage rate, claim rate, and cost-related indicators may be used according to the contracted scope.

## 5. Delay penalty

**Nova is subject to a fixed service-credit penalty of 5% of the freight charge for each carrier-attributable delivery completed more than one business day after the contractual commitment.** The penalty does not apply to delays of one business day or less unless a separate critical-delivery obligation is breached. Repeated failures remain subject to carrier-governance escalation.

## 6. Force majeure

Penalty relief may apply when a documented force-majeure event directly prevents performance and Nova demonstrates timely notice and reasonable mitigation. Government-mandated road closure, officially declared natural disaster, or comparable uncontrollable event may qualify. Ordinary congestion, driver absence, or internal planning failure does not qualify by itself.

## 7. Corrective action and escalation

Repeated service failures may trigger corrective action and formal escalation under the Carrier Management Policy. Contractual penalties do not prevent the enterprise from requiring a recovery plan or evaluating replacement where governance conditions are met.

## 8. Data handling

The carrier may process only the enterprise and customer information required to execute the contracted service. Data sharing must comply with the active Data Sharing Policy and Information Security Policy.

## 9. Special commercial terms

Nova must provide monthly root-cause reporting when OTIF is below the applicable target and must participate in a formal recovery review when requested.

## 10. Governing enterprise documents

Transportation Policy; Carrier Management Policy; Logistics KPI Dictionary; Data Sharing Policy; Information Security Policy; applicable Approval Authority Matrix.

## **11. Document control**

Controlled synthetic document generated for the Enterprise Knowledge AI System evaluation corpus. Contract interpretation in this corpus must consider the specific carrier, clause scope, effective date, and applicable enterprise governance.